

26STCP02397 26STCP02397

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-06

Motion: PETITIONER'S MOTION FOR AN ORDER APPROVING TRANSFER OF STRUCTURED SETTLEMENT
PAYMENT RIGHTS

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Case Number: 26STCP02397 Hearing Date: August 6, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

In Re Petition Of:

WOOD ESTATE, LLC,

Petitioner.

(Real Party in Interest: ASHLY GALLARDO)

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CASE

NO.: 26STCP02397

[TENTATIVE] ORDER RE:

PETITIONER'S MOTION FOR AN

ORDER APPROVING TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

Dept. 733

8:30 a.m.

August 6, 2026

I.

INTRODUCTION

On June 25, 2026, Petitioner Wood

Estate, LLC ("Petitioner") filed a Petition for

Approval of Transfer of Structured Settlement Payment

Rights.

On July

13, 2026, Petitioner filed an amended petition. The

Petition requests that Payee, Ashly Gallardo, receive \$40,0643.97 in exchange for the selling of the rights to and interest in the following payments: 103 monthly payments of \$1,047.51

commencing June 20, 2028 continuing through and including December 20, 2036. (See Amended Petition, Ex. A [Amended Purchase, Sale, and Transfer Agreement].)

No opposition has been filed.

II.

LEGAL STANDARD

California

Insurance Code section 10139.5 provides that a transfer of structured settlement payment rights is not effective unless the transfer has been approved in advance in a final court order based on the following express findings by the court that:   

1.

The transfer is in the best interest of the payee,   taking into account   the welfare and support of the payee's dependents.   

2.

The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived that advice in writing.   

3.

The transferee has provided the payee with a disclosure form that complies with Section 10136 and the transfer agreement complies with Sections 10136 and 10138.   

4.

The transfer does not contravene any applicable statute or the order of any court or other government authority.   

5.

The payee reasonably understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.   

6.

The payee understands and does not wish to exercise the payee's right to cancel the transfer agreement.   

(Ins. Code  
10139.5(a).)   

When determining whether the proposed transfer should be approved, including whether the transfer is fair, reasonable, and in the payee's best interest, the court shall consider the totality of the circumstances, including, but not limited to: (1) the reasonable preference and desire of the payee to complete the proposed transaction, taking into account the payee's age, mental capacity, legal knowledge, and apparent maturity level; (2) the stated purpose of the transfer; (3) the payee's financial and economic situation; (4) the terms of the transaction, including whether the payee is transferring monthly or lump sum payments or all or a portion of his or her future payments; (5) whether the future periodic payments were intended to pay for future medical care of the payee related to the incident that was the subject of the settlement; (6) whether the payee has other means of income or support sufficient to meet the payee's future financial obligations for support of payee's dependents, such as child support; (7) whether there were previous transactions involving payee's structured settlement payments; and (8) whether the payee and his or her dependents are facing a hardship situation. (Ins. Code § 10139.5(b).)

Procedurally, Insurance Code section 10136 provides that ten or more days before the payee executes a transfer agreement, the transferee shall provide the payee with a separate written disclosure statement, accurately completed with the information that applies to the transfer agreement in at least 12-point type. (Ins. Code § 10136(b).)

The court-approval process requires the transferee to file a petition in the county in which the transferor resides for approval of the transfer. (Ins. Code § 10139.5(f)(1).) In addition, the following elements are required to be served and filed not less than 20 days prior to the scheduled hearing on any application for approval of a transfer of structured settlement payment rights:

A.

A copy of the transferee's current and any prior petitions.

B.

A copy of the transfer agreement.

C.

A listing of each of the payee's dependents, together with each dependent's age.¿¿

D.

A copy of the disclosure required in subdivision (b) of Section 10136.¿¿

E.

A copy of the annuity contract, if available.¿¿

F.

A copy of any qualified assignment agreement, if available.¿¿

G.

A copy of the underlying structured settlement agreement, if available.¿¿

H.

If a copy of a document described in subparagraph (E), (F), or (G) is unavailable or cannot be located, then the transferee is not required to attach a copy of that document to the petition or notice of the proposed transfer if the transferee satisfies the court that reasonable efforts to locate and secure a copy of the document have been made, including making inquiry with the payee. If the documents are available, but contain a confidentiality or nondisclosure provision, then the transferee shall summarize in the petition the payments due and owing to the payee, and, if requested by the court, shall provide copies of the documents to the court at a scheduled hearing.¿¿

I.

Proof of service showing compliance with the notification requirements of this section.¿¿¿

J.

Notification that any interested party is entitled to support, oppose, or otherwise respond to the transferee's application, either in person or by counsel, by submitting written comments to the court or by participating in the hearing.¿¿

K.

Notification of the time and place of

the hearing and notification of the manner in which and the time by which written responses to the application must be filed, which may not be less than 15 days after service of the transferee's notice, in order to be considered by the court.

L.

If the payee entered into the

structured settlement at issue within five years prior to the date of the transfer agreement, then the transferee shall provide notice to the payee's attorney of record at the time the structured settlement was created, if the attorney is licensed to practice in California, at the attorney's address on file with the State Bar of California. The notice shall be delivered by regular mail.

(Ins. Code §

10139.5(f)(2))

Lastly, the court shall retain continuing jurisdiction to interpret and monitor the implementation of the transfer agreement as justice requires. (Ins. Code § 10139.5(i)).

III.

DISCUSSION

Petitioner seeks approval of the transfer of a structured settlement payment rights. Real Party in Interest Ashly Gallardo ("Gallardo") agreed to sell to Petitioner future payments totaling \$107,893.53, obtained from a settlement of a wrongful death lawsuit, in exchange for a purchase price of \$40,643.97.

The original settlement from a wrongful death action, entered in 2024, required 103 monthly payments in the amount of \$1,047.51 commencing June 20, 2028 continuing through and

including December 20, 2036, totaling \$107,893.53. (Amended Petition., Ex. A; Gallardo Decl., ¶ 5.) Gallardo will receive \$40,643.97 from the transaction.

Based on the information provided, the Court finds that the transfer of the settlement payment is reasonable and in the best interest of the payee, Gallardo. Contreras is 19 years old, single, with no minor children, making \$18.95/hour as a receptionist. (Gallardo Decl., ¶ 8.) She is currently experiencing financial hardship, and will use the funds to make repairs to my car and get my own apartment. (Id. ¶ 11.) Gallardo's car is her source of getting to and from work, and will need \$6,000.00 to repair its transmission and bumpers. (Ibid.) The income Gallardo currently makes will cover her monthly expenses if rent for the apartment is covered for the first year. (Ibid.)

Gallardo does not have child support obligations, and she has been advised by Petitioner of her right to seek independent counsel and financial advice in connection with the petition for court approval of the transfer agreement. (Id. ¶¶ 8, 12, Ex. E [waiver].) She understands the nature and terms of the transaction and entered into this agreement with Petitioner out of her own free will and volition. (Id. ¶ 13.) She will no longer retain the rights to any payments under the annuity. (Id. ¶ 3.)

When looking at the factors under California Insurance Code § 10139.5 as well as the Declaration of Gallardo, the transfer is appropriate.¿¿

Therefore, the Petition for Approval for Transfer of Payment Rights is granted.¿¿

IV. CONCLUSION

For the foregoing reasons, the Petition for Approval for Transfer of Payment Rights is GRANTED.¿¿

Moving Party to give notice.

Dated this 6th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court